

Section 8 Orders

Suggested responses for family court legal adviser training:

Module C, Unit 1

Child arrangements orders (which determine who a child should spend time or otherwise have contact with).	
a. What is meant by a child arrangements order which determines who a child should spend time or otherwise have contact with?	a. A child arrangements order is an order which determines the person with whom a child is to live, spend time or otherwise have contact and when the child is to live, spend time or otherwise have contact with any person - Section 8(1) Children Act 1989
b. What is the relevance of the welfare checklist?	b. The court is required to consider factors detailed in the welfare checklist (s.1(3)), when considering whether to make, vary or discharge a s.8 order especially when such an application is opposed.
c. What additional factors should the court have regard to when domestic abuse is an issue, and how will this affect case management?	c. The court must consider the provisions of the Practice Direction 12J. This must be referred to at all stages of the proceedings, and specifically at the First Hearing Dispute Resolution Appointment (FHDRA). The court must consider whether domestic abuse is raised as an issue, and if so must; • Identify at the earliest opportunity (usually the FHDRA) the factual and welfare issues involved; • Consider the nature of the allegation, admission or evidence of domestic abuse, and the extent to which it would be likely to be relevant in deciding whether to make a

child arrangement order and, if so, in what terms;

- Give directions to enable contested relevant factual and welfare issues to be tried as soon as possible and fairly;
- Ensure that where domestic abuse is admitted or proven, any child arrangements order in place protects the safety and wellbeing of the child and the parent with whom the child is living, and does not expose either of them to the risk of further harm; and
- Ensure that any interim child arrangements order (i.e. considered by the court before determination of the facts, and in absence of admission) is only made having followed the guidance in paragraphs 25-27 of the Practice Direction.

In particular, the court must be satisfied that the contact ordered with a parent who has perpetrated domestic abuse does not expose the child and/or other parent to the risk of harm and is in the best interests of the child.

Therefore, all cases for a child arrangements order, whether agreed, to be withdrawn or otherwise, must be carefully scrutinised by the court.

The court will also need to determine as soon as possible whether it is necessary to conduct a fact – finding hearing in relation to any disputed allegation of domestic abuse. If this is the case then paragraphs 16 – 20 should be considered in full by the court.

For relevant case law in relation to matters of domestic abuse see *Re L* (Contact: Domestic Violence), *Re V* (Contact: Domestic Violence), *Re M* (Contact: Domestic Violence), *Re H*

	(Contact: Domestic Violence) [2000] 2 FLR 334. The standard of proof is a balance of probabilities and the burden is on the complainant (Re A (Contact: Risk of Violence) [2005] EWHC 851, [2006] 1 FLR 283 which contains helpful suggestions as to how to approach the hearing). However, see Re B (Care Proceedings: Standard of Proof) [2008] 2 FLR 141 for the position in relation to the standard of proof.
d. What is meant by a defined child arrangements order?	d. The court specifies how/where/when the child is to see the non-resident parent.
e. What is meant by indirect contact?	e. This is contact between a parent and child/children other than face-to-face contact. Examples include telephone, letter. See also Re P (Contact: Supervision) [1996] 2 FLR 314 in which Wall J summarised the principles. Approach also reinforced in Re S (Contact: Promoting Relationship with Absent Parent) [2004] 1 FLR 1279.
f. What is meant by supervised contact?	f. This is contact supervised by another person. For example, supervised at a contact centre.
g. What conditions can the court attach when making a child arrangements order which determines who a child can spend time with?	g. Under s.11(7) Children Act 1989, a s.8 order may contain directions as to how it is to be carried into effect, and impose conditions which must be complied with. It can specify the period provisions are to have effect for, and it can make such incidental, supplemental or consequential provision as the court thinks fit.
h. What is the effect on a child arrangements order of parents living together for a continuous period of more than six months?	h. If the order relates to the contact between the child and the previously absent natural parent, the order lapses (s.11(6)). Otherwise there is no effect.
i. What is meant by an interim order?	i. An interim order is a term used for an order made at any time during the course of proceedings other than on final disposal. Section 11(3) defines. By analogy to (Re L (Interim Care

	Order) [1996] 2 FCR 742), such an order is not to be treated as an indication of how the matter will be disposed of. The object is generally to hold the balance (B v B (Interim Contact with Grandparents) [1993] Fam Law 393, FD). Courts should be cautious about making such interim orders where the principle of contact is in dispute and substantial factual issues are unresolved (Re W (A Minor) (Staying Contact) [1998] 2 FLR 450). Where the court has directed a fact-finding hearing then, before making any interim order, it must take into account paragraphs 18 to 20 of Practice Direction 12J and consider whether such an order would be in the interests of the child.
j. What part do a child's wishes and feelings play in the court's decision?	j. They are part of the welfare checklist. The child's age and understanding are also relevant factors however. Respect for the child's views, for example against contact, may be an overwhelming consideration in the court's balancing exercise (Re S (Contact: Children's Views) [2002] 1 FLR 1156) but the court may be prepared to overrule their wishes against contact if it believes it to be in the child's best long term interests (Re M (Children)(Contact: Long-Term Best Interests) [2006] 1 FLR 627).
k. How might the opposition to contact of the parent with care of the child affect the court's decision?	k. It is part of the courts role where possible to promote the involvement of both parents in a child's life. In October 2014 an amendment to the Children Act was commenced which explicitly states that a court is to presume, unless the contrary is shown, that involvement of that parent in the life of the child concerned will further the child's welfare. It was said in Re D (A Minor) (Contact: Mother's Hostility) [1993] 2 FLR 1 that the starting point of a child's right to know both their parents could be denied for cogent reasons. The implacable hostility of the mother to contact could provide such

	a reason. The degree of influence on the court's decision resulting from the hostility to contact of the parent with care will vary depending on how rational the hostility is. See Re P (Contact: Discretion) [1998] 2 FLR 696 and Re H (Contact Order) (No 2) 1 FLR 22. In V v V (Children)(Contact: Implacable Hostility) [2004] 2 FLR 851, Bracewell J made recommendations in respect of timetabling, judicial consistency and the role of Cafcass or CAFCASS CYMRU officers helping with monitoring contact, hand over arrangements etc. She also suggested that the courts needed more options for dealing with parents opposed to contact. See below, the powers introduced by the Children and Adoption Act 2006.
I. What are the court's powers, brought in by the Children and Adoption Act 2006 and amending the Children Act 1989, to promote, monitor and enforce contact?	I. Attachment of warning notices – s.11I. Must be attached to any contact order made or varied after 8 December 2008, warning of the consequences of breaching an order and any child arrangements order made after 22nd April 2014. May be attached to order pre-dating 8 December 2008 on application. Activity directions – s.11A, B and E can be imposed when there is a dispute about a child seeing a parent and the court is considering whether to make, vary or discharge a child arrangements order, except on final disposal. The court directs parties to attend approved activities designed to promote the child seeing the absent parent. Activity conditions – s.11 C, D and E. Can be made when the court is making or varying a child arrangements order defining who a child should see and can require a person to take part in an activity that promotes the child seeing the absent parent. Monitoring by Cafcass/CAFCASS CYMRU – s.11 G, H, M The court can

	request an officer of Cafcass/CAFCASS CYMRU to monitor and report back on compliance with a child arrangements order, activity condition, activity direction and enforcement order. Enforcement orders – s.11J to 11N. On application, the court can make an enforcement order of between 40 and 200 hours unpaid work if satisfied beyond reasonable doubt that a person has failed to comply with a child arrangements order (if a warning notice has been attached) unless there is a reasonable excuse for non-compliance. The court can decide to suspend an enforcement order for a period of time. Financial compensation order – s.11 O and P. On application, the court can order a person to pay compensation for financial loss resulting from their breach of a child arrangements order to another unless there is a reasonable excuse for non-compliance.
m. How is parental responsibility affected by the making of a child arrangements order which determines who a child should spend time or otherwise have contact with?	m. The Family Court has a duty to consider making an order for parental responsibility (either on application or of its own motion) when it proceeds to make a child arrangements order which determines who a child should spend time with or otherwise have contact with. The position for a father or woman who is a parent by virtue of the Human Fertilisation and Embryology Act 2008 is different to the position for other applicants or respondents. See s12 of the CA 1989 (as amended by s21 Part 1 of Schedule 2 of the Children and Families Act 2014) below: <i>'Where the court makes a child arrangements order with respect to a child and the father of the child or a woman who is a parent by virtue of s43 of the Human Fertilisation and Embryology Act 2008 is named as a person with whom the child shall spend time with or otherwise have contact and the father or women</i>

	would not otherwise have PR, the court MUST DECIDE <u>whether it would be appropriate</u> to make an order under s4/4ZA for parental responsibility... Where the court makes a child arrangements order and a person who is not the parent or guardian is named in the order as a person with whom the child is to <u>spend time with or otherwise have contact</u>, the court MAY provide for that person to have parental responsibility for the child whilst that order continues to have effect'
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Child arrangements orders (which determine where a child should live)

a. What is meant by a child arrangements order (which determine where a child should live)?	a. A child arrangements order is an order which determines the person with whom a child is to live, spend time or otherwise have contact and when the child is to live, spend time or otherwise have contact with any person - Section 8(1) Children Act 1989. However, there are differences between a child arrangements order which determines contact and one which determines where a child should live.
b. What is the relevance of the welfare checklist?	b. See answer to b. above. This is the same.
c. How is parental responsibility affected by the making of a child arrangements order which determines where a child should live?	c. Where a child arrangements order which determines that a child should live with a father or woman who is a parent by virtue of the Human Fertilisation and Embryology Act 2008 is made and that person does not have parental responsibility for the child, the court must make an order under s.4 giving them parental responsibility. Where a child arrangements order is made in respect of a person who is not the parent or guardian of the child and the order determines the child should live with that person, then the person concerned has parental responsibility for the duration of the child arrangements order (s.12 CA 1989). See s12 CA1989 as amended by s21 Part 1 of Schedule 2 of the Children and Families Act 2014 which states: <i>'Where the court makes a child arrangements order with respect to a child and the father of the child or a woman who is a parent by virtue of s43 of the Human Fertilisation and Embryology Act 2008 is named as a</i>

	<i>person with whom the child <u>shall live with</u> and the father or women would not otherwise have PR, the court MUST make an order under s4/4ZA for parental responsibility.</i> <i>Where the court makes a child arrangements order and a person who is not the parent or guardian is named in the order as a person with whom the child <u>shall live</u>, that person <u>shall have</u> parental responsibility for the child while the order remains in force so far as providing for the child to live with that person.'</i>
d. How long does a child arrangements order which determines where a child should live last?	d. A child arrangements order which determines where a child should live lasts until the child attains the age of 18, unless the court directs otherwise (s.91(11) Children Act 1989). Note that the Children and Young Persons Act 2008 has amended the Children Act 1989 to specifically exclude what used to be residence orders but are now child arrangements order which determine where a child should live, from s.91(10) CA 1989, which limits the duration of s.8 orders.
e. Can a child arrangements order be made which determines who a child should see without a child arrangements order which determines with whom a child should live being in place?	e. A child arrangements order which determines who a child should see cannot be made without first determining with whom the child is to live, since it is the person who has the child arrangements order determining where the child should live who allows the child to stay with the person. See <i>Re B (A Child: Contact)</i> [2001] EWCA Civ 1968. However, this does not mean that a child arrangements order must be made which determines where the child should live, merely that the court must determine the issue.
f. In what circumstances might the court make child arrangements orders which share the residence of a child between individuals?	f. Part of the reform of the private law process under the Child Arrangements Programme, and a key part of the thinking behind the CAP was seen to be the need to get away from a culture of winners and losers which contact and residence orders promoted. The introduction of child arrangements orders is intended to combat this culture. It is quite appropriate if the welfare of the child supports it, to make child arrangements orders for both parents dividing the time the child spends with each. <i>Re H (Shared Residence: Parental Responsibility)</i> [1996] 3 FCR 321 held that where a child spends a substantial amount of time with both parents, a shared residence order is appropriate. It is not necessary to demonstrate exceptional circumstances or positive benefit to the child, but simply that it is in the child's best interests. See <i>A v A (Shared Residence)</i> 2004 1 FLR 1195. The court made a shared residence order where a

	respondent mother was unduly controlling of the children, with seriously adverse consequences for the family. Wall J said that the parents had joint and equal parental responsibility. The residence of the children was shared between them. The court held that there needs to be a positive benefit for the child in making such non-conventional orders. In <i>Re A (Children)(Shared Residence)</i> 2002 EWCA Civ 1343, Thorpe LJ said ‘the judicial convention that the welfare of the children demanded a choice between one parent or the other as a guardian of the residence order in order to promote the welfare of the children no longer runs as it used to’. In <i>Re R (Children)</i> 2005 EWCA Civ 542 (19 April 2005), Thorpe LJ said that a harmonious relationship between the parents is not a prerequisite of a shared care order. Indeed, the presence of that sort of harmonious relationship is a contraindication of a shared residence order since the parents would fall within the no order principle emphasised by s.1(5) of the CA. Note that the court can specify periods in which the child is to live in different households (s.11(4) CA 1989). See also <i>Re S (A Child)</i> [2005] EWCA Civ 1386, for example: a shared residence order gave nine days to the mother and five days to the father per fortnight. Note also that a shared residence order can be used to give parental responsibility to a person who is neither a biological parent nor a step-parent but is entitled to have parental responsibility because of their degree of involvement in the child’s life. See <i>Re A (Joint Residence: Parental Responsibility)</i> [2008] 2 FLR 1593. A family court should not make a shared residence order unless it appeared reasonably likely that both parents would have suitable accommodation for the child and could not use a residence order to put pressure on a local housing authority to allocate their resources in a particular way. See <i>Holmes-Moorhouse v Richmond-upon-Thames LBC</i> [2009] UKHL 7.
g. What are the court’s powers to make a child arrangements order which determines where a child should live, of its own motion?	g. Power exists under s.10(1)(b) CA. However, it can only be in wholly exceptional circumstances that such an order should be imposed on unwilling recipients. See <i>Re K (Minors)(Care Order or Residence Order)</i> [1996] 1 FCR 365.
h. What is the general effect of a child arrangements order which determines where a child should live?	h. The following are examples of the effect of an order: • Settlement of who a child is to live with (s.8). • Parental responsibility (PR) for a father without it, or for a non-parent for duration of order (s.12(1) and (2)).

	• It discharges any care order (s.91 CA 1989). • A child's surname cannot be changed without the written consent of every person with PR, or consent of the court (s.13 CA 1989). • They cannot be removed from the UK for period of a month or more without written consent of everyone who has PR or leave of the court. • Entitled to apply for a special guardianship order (non-parents only) (s.14A CA 1989). Entitlement to reasonable contact with a child in care for a person who was the holder of a child arrangements order which determines where a child should live, immediately before the making of a care order (s.34 CA 1989).
Specific issue orders	
a. What is meant by a specific issue order?	a. Section 8(1) Children Act 1989 defines a specific issue order as an order giving directions for the purpose of determining a specific question which has arisen, or which may arise in connection with any aspect of parental responsibility.
b. What is the relevance of the welfare checklist?	b. See b. above.
c. What restrictions are imposed by section 9(5) CA 1989?	c. The court cannot make a specific issue order if the same result could be achieved by the making of a child arrangements order, or in any way which is denied to the High Court in the exercise of its inherent jurisdiction (s.9(5)).
d. Give examples of the specific issues that should not be allocated to be heard by magistrates.	d. Examples include: • Application for a specific issue order for the return of a child from a non-Hague Convention country. • Circumcision of a child: see <i>Re J (Specific Issue Orders: Child's Religious Upbringing and Circumcision)</i> [2000] 1 FLR 571, and <i>Re S (Specific Issue Order: Religion: Circumcision)</i> [2005] 1 FLR 236. • HIV testing of child (President's Direction: HIV Testing of Children [2003] 1 FLR 1299). • Contested issues over emergency medical treatment of a child (<i>Re O (A Minor) (Medical Treatment)</i> [1993] 2 FLR 149). Note that when considering allocation, you should always refer to the two Schedules to the Presidents Guidance on Allocation (private and public law) (April 2014).

Prohibited steps orders	
e. What is meant by a prohibited steps order?	a. Section 8(1) Children Act 1989 defines a prohibited steps order as an order that no step which could be taken by a parent in meeting his parental responsibility for a child, and which is of a kind specified in the order, shall be taken by any person without the consent of the court.
f. What is the relevance of the welfare checklist?	b. See b. above.
g. What is the restriction imposed by section 9(5) CA 1989?	c. Under s.9(5), the court cannot make a prohibited steps order if same result could be achieved by the making of a child arrangements order or in any way which is denied to the High Court in the exercise of its inherent jurisdiction.
h. Give examples of prohibited steps orders that might be made by magistrates sitting in the family court?	d. Examples include preventing: • change of a child's surname * • a child's temporary removal from UK. * *Note however s.13 and s.14C CA 1989, for the position where a child arrangements order determining where a child should live/special guardianship order is in force.
Family assistance order (section 16 Children Act 1989)	
i. What is the definition of a family assistance order?	a. An order requiring an officer of Cafcass or CAFCASS CYMRU or a local authority (where the local authority agrees or the child lives or will live within the local authority area) to advise, assist and befriend any person named in the order (s.16(1)).
j. What are the criteria for making an order?	b. The court has obtained the consent of every person to be named in the order other than the child (s.16(3) CA 1989).
k. What is the duration of an order?	c. 12 months, unless a shorter period is specified (s.16(5)).
l. Can an order be made without the local authority's consent?	d. Yes: if the child lives or will live within area (s.16(7) CA). See also <i>Re E (Family Assistance Order)</i> [1999] 2 FLR 512, in which a family assistance order was made against a local authority in spite of the authority's reluctance to submit to it: on the exceptional facts of

	the case, supervised contact between a child and their mother could not have taken place without such an order. But see Practice Direction 12 M - Family Assistance Orders: Consultation [2007] 2 FLR 626. Before the court makes a family assistance order, the court must have obtained the opinion of the appropriate officer about whether it would be in the best interests of the child to make a family assistance order, how it should operate and for how long.
m. Can the court require anything else from the officer concerned?	e. Yes. When a s.8 order is in force at the same time it can require a report on any aspect of the s.8 order. S.16(6).
Variation and discharge of section 8 orders	
a. Can the magistrates deal with applications to vary or discharge a section 8 order?	a. Yes - Application to vary or discharge will be allocated to the appropriate tier of judiciary in accordance with the Allocation Guidance (April 2014).
b. Which Children Act form(s) should an applicant use to apply to vary a section 8 order?	b. C100 is the main form and C1A is the supplemental form where there are allegations of harm and domestic violence (both can be downloaded from the HMCTS intranet: http://libra.lcd.gsi.gov.uk/courtswork/family/forms/513.htm at Forms).
c. What effect has the making of a care order on a child arrangements order which determines where a child should live?	c. The child arrangements order which determines where a child should live is discharged (s.91(2) CA 1989).
d. What effect does the making of a child arrangements order which determines where a child should live, have on a care order?	d. The care order is discharged (s.91(1)).
e. What is the effect on a child arrangements order which determines where a child should live, of parents with parental responsibility, one of whom has the benefit of the child arrangements order which determines where a child should live,	e. No effect. However, if the parents cohabit for a continuous period of more than six months, the child arrangements order which determines where a child should live will cease to have effect.

in question, cohabiting for a period of three months?		

Case management

Commencing proceedings for a section 8 order	
a. Who is entitled to apply for a s.8 order?	a. Those entitled to apply for any s.8 order are set out in s.10(4) and are any parent, guardian, special guardian, step-parent with parental responsibility or the holder of a child arrangements order which determines where a child should live. Also s.10(5) and (10) give a list of others who can apply for a child arrangements order, namely a party to a marriage or civil partnership for whom the child may be regarded as a child of the family, a person with whom the child has lived for three years in the last five, or a person with the consent of the holder of a child arrangements order which determines where a child should live or a care order or, if neither order is in force, with the consent of all the people with parental responsibility for the child. In relation to child arrangement orders which determine where a child shall live, s.10(5A) and s.10(5B) allow a local authority foster parent and a child's relative to apply for an order if the child has lived with them for at least a year before the application. r. 12.3 FPR for the table setting out who the parties are in applications relating to children.
b. What factors should the court take into account when dealing with an application for permission to start proceedings by a person not entitled to apply as of right?	b. If a child is applying, the case should be allocated to be heard by a District Judge. The court will need to be satisfied that the child has sufficient understanding to make the application (s.10(8)). For other applicants, the court is to have regard to criteria set down in s.10(9). See also <i>Re W (Care proceedings: Leave to apply)</i> [2005] 2 FLR 468, which made clear that the test for considering whether to grant party status to a relative, other than a parent, grandparent or guardian, was the same in both public and private law proceedings, and whether or not the applicant was seeking, or intending to seek, a specific order. If the applicant's interests were identical to those of another party, the court would be unlikely to grant permission. Since here there was no difference between the case of the applicant aunt and her mother, the maternal grandmother, as to frequency of contact, there was no requirement for the applicant to be made a party. Part 18 FPR 2010 deals with the procedure for permission to start proceedings. See also <i>Re W (Minors)(Contact: Leave to Apply)</i> 2000 1 Fcr 185. Application for permission to start proceedings is made on form C2 and a draft of the application in form C100 should also be filed.
c. On applying for a s.8 order, what restrictions exist/can be imposed?	c. Restrictions: • s.9(1) CA: no s.8 order except a child arrangement order which determines with whom a child shall live may be made for a child in the care of the local authority • s.9(2) CA: no application for a child arrangements order can be made by a local authority • s.9(3): restrictions on foster parents applying for leave unless the criteria set out in s.9(3) are satisfied • s.91(14): no further application without leave. See also <i>Re P (Section 91(14) Guidelines)(Residence and Religious Heritage)</i> [1999] 2 FLR 573 which provided 11 points of guidance for the court when considering whether to make a s.91(14) order. (It is inappropriate to employ s.91(14) when proceedings are ongoing. Furthermore an application had to be issued in advance and supported by evidence (<i>Re C-J (Section 91(14) Order)</i> [2006] 2 FLR 1213). Note also it is not permissible for the court, when disposing of an application for an order under s.91(14), to impose conditions on the order restricting or otherwise identifying the circumstances in which an application for permission could be made (<i>Re S (Permission to seek relief)</i> [2007] 1 FLR 482.
d. Does the court have the power to make an order, of its own motion?	d. The power of the court to make an order, of its own motion, in any family proceedings, is in s.10. The court should inform parties of its intention and give opportunity to make submissions. The procedure is set out in r. 4.3 FPR.
e. What are the rules about form and service of application?	e. Part 5 FPR refers to Practice Direction 5A – Forms, which lists the forms to be used in family proceedings. Rule 12.8 sets out the provisions for service, along with Practice Direction 12C – Service of Application in Certain Proceedings Relating to Children, which indicates who should receive copies of the application and the time for serving it. Service to be not less than 14 days before date fixed for the first hearing. Form of application: C100, C1A, C2 if leave is being sought, C6 (notice to parties) and C6A (notice to non-parties). Where the application is in respect of more than one child, the application for all children is made on the same form. The respondents are listed in r. 12.3. Form C7 (acknowledgement) should be filed, together with C1A if the respondent alleges domestic violence. See also the requirements in relation to safeguarding set out in the Child Arrangements Programme (April 2014) - service of C100 and notice of hearing on Cafcass to carry out safeguarding checks prior to the first hearing – para (i) below.
f. What is the procedure where an applicant does not wish to disclose their address?	f. Use Form C8: Confidential Address Form.
g. Attendance of parties at the hearing?	g. On the attendance of parties, see r. 12.14 FPR. All parties should attend all hearings or directions appointments unless the court excuses them. In the event that one party does not attend, the court can proceed in absence in some circumstances, including refusing the application if a respondent appears but the applicant does not. Note that proceedings will take place in the absence of a child who is a party if they are represented and the court considers that it is in the interests of justice that they be absent – r. 12.14(3) and r. 12.14(4).
h. What are the Child Arrangement Programme (April 2014) requirements prior to and at the first hearing?	h. Regarding the Child Arrangements Programme, note the following: • Parties must attend a MIAM before making the application unless they are exempted • The court should hold a First Hearing Dispute Resolution Appointment (FHDR) within 4 weeks and no later than 6 weeks of the issue of an application. • The court will in all cases under the CAP obtain a safeguarding report which should be available 3 days prior to the FHDR.

Section 7 Reports	
a. Who can the court direct to report under s.7 on matters relating to the welfare of the child?	a. An officer of the Service (as defined by s.11 Criminal Justice and Court Services Act 2000 (i.e. of Cafcass or exercising the functions of a Cafcass officer) or a Welsh family proceedings officer under s.7(1)(a), or an officer of the local authority or such other person as the local authority considers appropriate under s.7(1)(b).
b. What is the difference between a children and family reporter and a welfare officer?	b. The children and family reporter is an officer of Cafcass or CAFCASS CYMRU who has been asked to prepare a report under s.7(1)(a), and a welfare officer is a person who has been asked to prepare a report under s.7(1)(b). See r. 16.33 FPR and the definitions in r. 2.3 FPR. For further duties of the children and family reporter/welfare officer, Practice Direction 16A – Representation of Children (April 2014).
c. Give an example of when the court might request a s.7(1)(b) report as distinct from a s.7(1)(a) report.	
d. What are the timescales within your area for the preparation of a s.7 report?	
e. Must the court follow the recommendation in the report and, if not, what must it do?	e. Any final decision is with the court, but it must take into account the report and, if it decides not to follow recommendation, it should give reasons. <i>Re P (Custody of Children: Split Custody Order)</i> [1991] 1 FLR 337 and <i>Re J (Children) (Residence: Expert Evidence)</i> [2001] 2 FCR 44.
Section 37: Court-ordered Investigations	
a. Explain the court's powers under s.37 of the Children Act 1989.	a. The court has the power to direct a local authority to investigate a child's circumstances where in any family proceedings there is a child welfare issue and it appears to the court that it may be appropriate to make a care or supervision order under s.31. The local authority must either take proceedings or report back to the court within eight weeks. When making a s.37 direction, the court can make an interim care order – see s.38(1)(b). r. 12.17 FPR states that a copy of the direction must be served on the local authority as soon as practicable and the court can direct which documents should also be served on the local authority. It is good practice to make an immediate telephone call and follow up with the written direction. The reasons for making the s.37 order should also be forwarded to the local authority without delay. See <i>Re M (Intractable Contact Dispute: Inter im Care Order)</i> [2003] 2 FLR 636. See also Best Practice Guidance on Section 37 Directions issued by the Children Act Advisory Committee in its Annual Report 1992/1993.
b. In what circumstances might the power be exercised?	b. 'Child's circumstances' under s. 37(1) is to be construed widely, and should include any situation which might have a bearing on the child being likely to suffer significant harm in the future (<i>Re H (A Minor)(Section 37 Direction)</i> [1993] 2 FLR 541). A s.37 investigation is not to be ordered in private law proceedings, unless it appears that a public law order might be appropriate (<i>Re L (Section 37 Direction)</i> [1999] 1 FLR 984). Concerning situations where the children are being denied all contact with the non-residential parent, see <i>Re M (Intractable Contact Dispute: Interim Care Order)</i> [2003] 2 FLR 636. Note that Wall J comments that removal of the children as part of the s.37 procedure is not a panacea and must only be used when the circumstances truly justify it.
c. Describe the procedure for the appointment of a children's guardian.	c. The court shall appoint a guardian if making or considering making an interim care order — unless it is satisfied it is not necessary in order to safeguard the child's interests: see s.41(1) and s.41(6)(b), r. 16.3 FPR and Practice Direction 16A – Representation of Children, Part 3.
d. What are the options for a local authority ordered to investigate under s.37?	d. They are set out in s.37(2), (3), (4) and (6). These include taking care or supervision proceedings, or supporting the child or the child's family in some other way. If the local authority does not commence care/supervision proceedings then it must provide a report in eight weeks setting out the reasons for not applying, any service provided to the child or their family and any other action taken.

	•The court must consider whether domestic abuse is raised as an issue, either by the parties or by Cafcass or CAFCASS Cymru or otherwise, and if so must, consider the provisions and guidance of the Practice Direction 12J – Child Arrangements and Contact Orders (October 2017). •The court must consider and identify persons/witnesses who are vulnerable persons within the proceedings (not the child) and determine appropriate measures to be put in place to ensure that the participation of the parties and quality of the evidence is not diminished by reasons of their vulnerability – Practice Direction 3AA – Vulnerable Persons: participation in proceedings and giving evidence.
i. And after the first hearing?	i. The court should include on the face of any order various matters, including what is now agreed, what is still to be resolved, whether domestic abuse is raised as an issue which is likely to be relevant to any decision which relates to the welfare of the child, timetabled plans for resolution (including any reports that are required), interim arrangements, a statement as to any facts relating to risk or safety. It should determine the appropriate tier of judiciary and re allocate the case if necessary. The court should also include details of whether the parties are to be assisted by mediation or parenting intervention. Any activity conditions or directions should be set out.